

Sunil Kumar, S/O Mr Krishna Kumar vs Dr. Chanchal Pal, D/O Ramendra Pal on 22 July, 2020

Author: Mahendar Kumar Goyal

Bench: Mahendar Kumar Goyal

(1 of 5)

[CW-6090/2020]

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Civil Writ Petition No. 6090/2020

Sunil Kumar, aged about 42 Years, S/o Mr. Krishna Kumar,
Resident of 140 Krishna Kunj Society, Shekhawat Marg, Kalwar
Road, Jhotwara Jaipur 302012 (Rajasthan)

----Petitioner

Versus

Dr. Chanchal Pal, aged about 43 Years, D/o Ramendra Pal,
Resident of 232 C Vishnu Marg, Officers Campus Extension, Sirsi
Road Jaipur 302021 (Rajasthan)

----Respondent

For Petitioner(s) : Mr. Hans Kumar Sharma
For Respondent(s) :

HON'BLE MR. JUSTICE MAHENDAR KUMAR GOYAL

Order

22/07/2020

This writ petition has been filed against the order dated
10.10.2019 passed by the learned Family Court No.1, Jaipur. The
order dated 10.10.2019 reads as under:

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gksA vizkFkhZ dks uksfVl e; udy fu;ekuqlkj tkjh gksdj fnukad 28@11@19 dks

is 'k gksA"

Assailing the order, learned counsel for the petitioner

contended that in para 6 of the petition filed by the respondent under section 13 of the Hindu Marriage Act, 1955, she herself has claimed the parties to have resided together till 17.06.2019 and hence, the petition seeking divorce on the ground of desertion (2 of 5) [CW-6090/2020] filed on 05.10.2019 was not maintainable. He submits that the petition was supported by false affidavit of the respondent wherein she claimed to have married the petitioner on 15.02.2017 whereas, on that day, two D.B. Civil Misc. Appeals bearing No.4098/2016 and 4099/2016 were pending before this Court against the judgment and decree dated 25.06.2016 whereby the petition filed by Shri Ajay Singh, ex husband seeking divorce was allowed and the application filed by the respondent-wife for restitution of conjugal rights was dismissed. Learned counsel for the petitioner submitted that since an appeal against grant of decree of divorce was pending on 15.02.2017 i.e. date of marriage of the petitioner with the respondent, such marriage was hit by Section 15 of the Act of 1955 rendering it null and void. He submits that in these circumstances, the learned Family Court ought not to have entertained the petition filed by the respondent under Section 13 of the Act of 1955 and should not have issued notices of the same to the petitioner vide order impugned.

To buttress his submission that the marriage of the respondent with him was hit by Section 15 of the Act of 1955, learned counsel for the petitioner has placed reliance upon the judgment of Division Bench of this Court in D.B. Civil Misc. Appeal No.363/2013 (Shilpa Vs. Kuldeep Singh Gehlot) reported in (2015) 3 DNJ 1190. In this regard, learned counsel for the petitioner further contended that, it was imperative for the learned Family Court No.1, Jaipur to have taken cognizance of the the aforesaid judgment rendered by the Division Bench of this Court, being law of the land, before issuing the notice to him vide order impugned dated 10.10.2019.

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[CW-6090/2020]

Therefore, submission of the learned counsel for th

petitioner has been that the learned Family Court No.1, Jaipur has erred gravely in issuing notices to him on a petition filed by the respondent under Section 13 of the Act of 1955 which, on its face, was not maintainable.

Heard the learned counsel for the petitioner and perused the record.

Under challenge, in this writ petition, is the order dated 10.10.2019 whereby on satisfaction that the petition does not suffer from any such infirmity warranting its rejection at the threshold, notices have been issued to the petitioner/respondent.

A perusal of the petition filed by the respondent under Section 13 of the Act of 1955 (Annexure P-2) reveals that it is based on the ground of cruelty and not on the ground of desertion. Thus, the contention of the learned counsel for the petitioner that in view of the averments made by the respondent in para 6 of the petition, the learned Family Court No.1, Jaipur should not have entertained the petition seeking divorce on the ground of desertion, does not survive.

The contention of the learned counsel for the petitioner that in view of pendency of the D.B. Civil Misc. Appeal by the respondent-wife against the decree of divorce dated 25.06.2016 in favour of Shri Ajay Singh, her ex husband, his marriage with the respondent being hit by Section 15 of the Act of 1955, the learned Family Court No.1, Jaipur ought not to have entertained the petition, is devoid of merit in absence of any material before the learned Family Court in this regard. It is trite law that maintainability of a petition/plaint at the time of issuance of notice has to be seen in the light of averments made in it only.

(4 of 5) [CW-6090/2020] The contents of the petition filed by the respondent does not reveal any such fact in it as contended by the learned counsel for the petitioner and there was no material before the learned Family Court not to have entertained the petition filed by the respondent. If the petitioner feels that marriage of the respondent with him was in violation of Section 15 of the Act of 1955 or for that matter, the petition seeking divorce was supported by false affidavit of the respondent, he is at liberty to raise his objection before the learned Family Court by placing the appropriate material to substantiate his objection; but, he can be permitted to assail the order dated 10.10.2019 issuing notice by placing altogether new/fresh material before this Court in the writ petition under Article 227 of the Constitution of India which was not available with the learned Family Court at the relevant time.

So far as contention of the learned counsel for the petitioner that marriage of the respondent with him being hit by Section 15 of the Act of 1955, it was obligatory upon the learned Family Court not to have entertained the petition filed by the respondent seeking divorce in view of the judgment of the Division Bench of this Court in case of Shilpa (supra), is concerned, it is wholly misconceived and misplaced. In absence of any material available with the learned Family Court to show that on 15.02.2017, i.e. the date of marriage of the petitioner with the respondent, an appeal against the decree of divorce granted in a petition filed by the ex husband of the respondent, Shri Ajay Singh, was pending before this Court, there was no occasion for the learned Family Court to have taken cognizance of the aforesaid fact as well as the judgment or of Section 15 of the Act of 1955. When asked pointedly by this Court as to what was material before the learned (5 of 5) [CW-6090/2020] Family Court, while passing the order dated 10.10.2019, to draw a conclusion that the marriage dated 15.02.2017 was hit by Section 15 of the Act of 1955, the learned counsel for the petitioner failed to respond. In these circumstances, it is apparent that the petitioner has come out with wholly misconceived and misplaced plea and the writ petition filed against the order dated 10.10.2019 deserves to be dismissed with cost of 5,000/-. The writ petition is dismissed with the cost as aforesaid.

The petitioner shall deposit the cost with the Rajasthan State Legal Services Authority, Rajasthan High Court, Jaipur within a period of four weeks from today.

